

Amendment No. 1 to HB2320

Crawford
Signature of Sponsor

AMEND Senate Bill No. 2613*

House Bill No. 2320

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 7-89-101, is amended by deleting the section and substituting instead:

This chapter is known and may be cited as the "Convention Center and
Agricultural Exposition Authorities Act."

SECTION 2. Tennessee Code Annotated, Section 7-89-102(a), is amended by adding the following to the end of the subsection:

For purposes of this chapter, "convention center facilities" include agriculture
exposition facilities and related facilities.

SECTION 3. Tennessee Code Annotated, Section 7-89-103(1), is amended by deleting the subdivision and substituting instead:

(1) "Authority," "convention center authority," or "agriculture exposition authority"
means any public corporation organized pursuant to this chapter;

SECTION 4. Tennessee Code Annotated, Section 7-89-103(10), is amended by deleting the subdivision and substituting instead:

(10) "Project" means:

(A) Any land, improvement, structure, building, or part of a building
composed of facilities for conventions, public assemblies, conferences, trade
exhibitions, or other business, social, cultural, scientific, and public interest
events, along with any associated hotel accommodations; transportation
infrastructure; tourism, theatre, retail business, and commercial office space

facilities; parking facilities or any other structure or facility constructed, leased, equipped, renovated, or acquired for any of the purposes set forth in this chapter, and also includes, but is not limited to, parks, greenways, open spaces, roads, streets, highways, curbs, bridges, flood control facilities, and utility services, such as water, sanitary sewer, electricity, gas and natural gas, and telecommunications that are constructed, leased, equipped, renovated, or acquired as a supporting system or facility for any of the purposes set forth in this chapter; provided, that any such supporting system or facility is dedicated for public use; and

(B) Includes agricultural exposition facilities, including exhibition buildings and facilities, together with all associated facilities and supporting systems; provided, that any such supporting system or facility is dedicated for public use;

SECTION 5. Tennessee Code Annotated, Section 7-89-104, is amended by deleting the language "convention center authority" and substituting instead "convention center authority or agriculture exposition authority".

SECTION 6. Tennessee Code Annotated, Section 7-89-105(a)(1), is amended by deleting the subdivision and substituting instead:

(1) The name of the authority, which must be the convention center authority [or agricultural exposition authority (as applicable)] of the city, county, or metropolitan government of _____, where the blank is to be filled in with the name of the municipality, if the name is available for use by the authority, and if not available, then the chief executive officer of the municipality shall designate some other similar name that is available;

SECTION 7. Tennessee Code Annotated, Section 7-89-105(a)(7), is amended by deleting the language "convention center".

SECTION 8. Tennessee Code Annotated, Section 7-89-108, is amended by adding the following as a new subsection:

(d) If an agricultural exposition facility owned by an authority is leased or used by a nonprofit organization to operate an agricultural fair at least once a year, the organization that operates such agricultural fair may appoint an additional director to the board of directors of the authority, with the term of such director being established by the appointing organization, for such period as the organization has a lease or other agreement to use the facility. If a director is appointed pursuant to this subsection (d), such director is a voting member of the board of directors of the authority and has all rights and obligations as the directors appointed by the municipality.

SECTION 9. Tennessee Code Annotated, Section 7-89-109, is amended by deleting the language "convention center".

SECTION 10. Tennessee Code Annotated, Section 7-89-112(k), is amended by deleting the language "a convention center authority" and substituting instead "an authority"; deleting the language "convention center facilities" and substituting instead "convention center or agricultural exposition facilities"; deleting the language "the convention center authority" wherever it appears and substituting instead "the authority"; and deleting "convention center facility" wherever it appears and substituting instead "convention center or agricultural exposition facility".

SECTION 11. Tennessee Code Annotated, Section 7-89-115(c), is amended by deleting the language "convention center facilities" and substituting instead "convention center or agricultural exposition facilities".

SECTION 12. Tennessee Code Annotated, Section 7-89-120, is amended by deleting the language "a convention center authority" and substituting instead "an authority".

SECTION 13. This act takes effect upon becoming a law, the public welfare requiring it.